

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: August 20, 2026

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1.	Woods v. General Motors, LLC 24-1427229	The motion for attorneys' fees filed by plaintiff Scott Henry Woods (Plaintiff) against defendant General Motors, LLC (Defendant) is GRANTED IN PART to award Plaintiff \$42,125.00 in attorneys' fees. A court assessing a claim for fees under <i>Civil Code section 1794, subdivision (d)</i> is to use the lodestar as the start, to assess the reasonableness of the fee claim. (<i>Mikhaeilpoor v. BMW of North</i>

		<i>America</i> (2020) 48 Cal.App.5th 240, 246-247.) The party claiming fees has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and reasonable in amount. (<i>Ibid</i>; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (<i>Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.</i> (2008) 163 Cal.App.4th 550, 564.) With regard to the determination of a reasonable hourly rate, the court may rely on its own knowledge and familiarity with the legal market as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (<i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) The Court finds the hourly rates requested adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Wirtz Decl., ¶¶ 4-11, 17-26 and Exs. 2-4; see also, <i>Baer v. Tedder</i> (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested. The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is DENIED The Court has reviewed the billing records submitted by Plaintiff's counsel and determines the fees claimed are reasonable in light of the circumstances of this case. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsel's declaration and the detailed billing records. Defendant failed to show any specific billing entries should be reduced as excessive or unreasonable. Based on the foregoing, the motion is GRANTED IN PART to award Plaintiff total attorney's fees against Defendant in the sum of \$42,125.00. Plaintiff's evidentiary objections are OVERRULED. <i>Counsel for Plaintiff is ordered to give notice of this ruling.</i>
2.	MedLab2020, Inc. v. UHC of California	Before the Court is the unopposed application of attorney Robert Keefe to appear in this matter pro hac vice as counsel for defendants.

	25-1506621	Mr. Keefe has complied with the requirements set forth in <i>California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED. <i>Mr. Keefe is ordered to give notice of this ruling.</i>
3.	Kolaar v. FCA US LLC 25-1493558	The motion for terminating sanctions filed by defendants FCA US LLC and Huntington Beach Chrysler Dodge Jeep Ram (collectively, Defendants) against plaintiff Aaron Van Korlaar (Plaintiff) is DENIED WITHOUT PREJUDICE. The proof of service for this motion lists an incorrect email address for Plaintiff's counsel. The email address for Plaintiff's counsel listed in the proof of service contains a misspelling and omits the number 4 from the email address. (See ROA 10, 41.) There is no opposition filed. It is thus unclear if Plaintiff received proper notice of this motion. Based on the foregoing, the motion is DENIED WITHOUT PREJUDICE. <i>Counsel for Defendant shall give notice.</i>
4.	Jergensen v. NAHS Holding, Inc. 24-1411114	<i>(Sorry, still pending)</i>
5.	Li v. Li 25-1517999	<i>(Sorry, still pending)</i>
6.	Potter v. Gustafson 26-1554580	<i>(Continued)</i>
7.	Mkhitarian v. Mustafiz 25-1475287	Before the Court is a demurrer by defendant Tanim Mustafiz (Defendant) on the Second Amended Complaint (SAC) of plaintiff Albert Mkhitarian (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED as to the 1st cause of action without leave to amend. Defendant shall file his answer, if any, within 10 days. Plaintiff failed to cure the defect in the prior pleading. In the SAC, Plaintiff alleges Defendant was an equal shareholder of TestJet with Plaintiff, and adds that Defendant "was also an officer and director of TestJet, and, by reason of such, owed fiduciary duties to Plaintiff." (SAC ¶ 21.) These facts are still insufficient to establish the existence of a fiduciary relationship giving rise to breach of fiduciary duty. (<i>City of Atascadero v. Merrill Lynch, Pierce, Fenner & Smith</i> (1998) 68 Cal. App. 4th 445, 483 [elements].) Corporate officers and directors stand in a fiduciary relation to both the corporation and its stockholders. (<i>Bancroft-Whitney Co. v. Glen</i> (1966) 64 Cal.2d 327, 345.) There is a "strong public interest in assuring that corporate officers, directors, majority shareholders and others are faithful to their fiduciary obligations to minority shareholders." (<i>Meister v. Mensinger</i> (2014) 230 Cal.App.4th 381, 395 [emphasis added], citing <i>Steinberg v. Amplica, Inc.</i> (1986) 42 Cal.3d 1198, 1210; see e.g., <i>Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141,

		1146-1147, 1156-1162 [no fiduciary duty arose from a <i>de facto</i> partnership or voluntary assumption of fiduciary obligations, despite the defendant's status as president, secretary and operational manner].) Here, however, Plaintiff does not allege status as a minority shareholder or other circumstances that may give rise to a fiduciary duty of a corporate officer or director. Nor does Plaintiff allege sufficient facts to establish a confidential relationship giving rise to a fiduciary duty. (<i>Richelle v. Roman Catholic Archbishop</i> (2003) 106 Cal.App.4th 257, 271 [elements].) Superior knowledge or unequal access to an allegedly concealed fact might support Plaintiff's separate fraud theories, but it does not establish the vulnerability required for a confidential relationship. There is no stronger or weaker party under the circumstances of this case. The SAC alleges equal ownership and repeatedly refers to the parties as business "partners," suggesting equal power. "Before a person can be charged with a fiduciary obligation, he must either knowingly undertake to act on behalf and for the benefit of another, or must enter into a relationship which imposes that undertaking as a matter of law." (<i>City of Hope National Medical Center v. Genentech, Inc.</i> (2008) 43 Cal.4th 375, 386.) There are no facts to suggest that Defendant took Plaintiff's capital contributions with the view to acting primarily for the benefit of Plaintiff. The demurrer is therefore SUSTAINED without leave to amend. <i>Counsel for Defendant shall give notice of this ruling.</i>
8.	Waypoint Aviation Services v. Transcontinental Air LLC 25-1495879	Before the Court is a demurrer and motion to strike filed by defendant Transcontinental Air, LLC to the first amended complaint (FAC) of plaintiff Waypoint Aviation Services. For the reasons set forth below, the demurrer is OVERRULED in its entirety and the motion to strike is GRANTED with 10 days' leave to amend. Demurrer <u>1st cause of action</u> (breach of contract): The FAC states sufficient facts to state a cause of action. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821 [elements]; FAC ¶¶ 5-8, Exs. A, B.) The Court finds the statute of frauds does not apply. The statute of frauds provides that "[a]n agreement that by its terms is not to be performed within a year from the making thereof" is invalid unless it is memorialized in writing and "subscribed by the party to be charged." (<i>Civ. Code, § 1624(a)(1)</i>.) The terms of the contract itself must reveal that it cannot be performed within one year. (<i>White Lighting Co. v. Wolfson</i> (1968) 68 Cal.2d 336, 343; <i>Rest. 2d Contracts</i> §§ 110(1)(e), 130.) Here, there are no terms in the alleged contract or exhibits attached to the FAC that services and/or payment must be completed in one year. The fact that the services were actually performed over a period of more year is irrelevant. (<i>Rest.2d, Contracts</i> § 130, Comment a ["the enforceability of a contract under the one-year provision does not turn on the actual course of subsequent events, nor on the expectations of the parties as to the probabilities"].)

The Court also finds *Business and Professions Code* section 9793 does not bar Plaintiff's claims. The Aircraft Repair Lien Law (*Bus. & Prof. Code §§ 9790 et. seq.* ("Lien Law")) regulate repairs and services provided to owners of noncommercial aircraft and authorizes a nonpossessory lien in favor of aircraft repairpersons, as long as their services are performed in accordance with mandatory statutory requirements. (*13 Witkin, Summary of Cal. Law, 11th edition | Personal Property* (May 2026 update) § 253; *4 Witkin, Summary of Cal. Law, 11th edition | Sales* (May 2026 update) § 348.) Failure to comply with *Business and Professions Code § 9793 et. seq.* precludes a repairperson from obtaining a lien on an aircraft for compensation for services rendered. (*Bus. & Prof. Code § 9798.1, subd. (h).*) There is nothing in the Lien Law that precludes a repairperson from pursuing a civil action for damages arising out of the owner's failure to pay for services. Defendant fails to cite to any authority – statutory or case law – that supports its position that the Lien Law bars such claims. The demurrer is thus **OVERRULED** as to this cause of action.

2nd and 4th causes of action (open book account and quantum meruit): Defendant argues *Business and Professions Code § 9793* bars these claims. This argument fails for the reasons set forth above. The demurrer is thus **OVERRULED** as to these causes of action.

3rd cause of action (account stated): The FAC states sufficient facts to state a cause of action, including mutual assent. (*Leighton v. Forster* (2017) 8 Cal.App.5th 467, 491; FAC ¶¶ 5, 6, 14, 15.) The FAC attaches a copy of the work order and invoice containing line items of services performed, and states: "All line items were approved either in writing or verbally by the principal of the Defendant, Dr. Patrick T. Yoshikane, DDS." (FAC ¶ 5.) This is sufficient to show assent. The demurrer is thus **OVERRULED** as to this cause of action.

Motion to Strike

A motion to strike can be used to attack claims for damages that are not supported by the cause of action pleaded, such as unauthorized attorney fee claims. (*Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial* (The Rutter Group 2026) ¶¶ 7:182, 7:183; *Code of Civ. Proc. § 436, subd. (a).*) As pointed out by Defendant, there are no facts in the FAC establishing any contractual or statutory basis for the recovery of attorney fees. The motion to strike is therefore **GRANTED** with 10 days' leave to amend.

Counsel for Defendant shall give notice of this ruling.

9.	Casco v. Bank of America, N.A. 23-1335287	(Continued)
10.	Andresen v. Watermeier 25-1507923	(Continued)
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